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File No.: EXP202316925

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on 06/11/2023. The complaint is directed against MUÑOZ Y CORRALES ASESORES, S.L. with NIF B41507195 (hereinafter, the respondent). The reasons for the complaint are as follows: the claimant states that the respondent contacted her via postal communication, offering her professional services as a management agency for carrying out procedures following the death of her father, attaching in that communication a death certificate of her father, obtained without her prior consent; she indicates that she has filed a complaint with the Civil Registry of Bormujos, as the entity responsible for issuing the aforementioned certificate, without receiving any response in this regard. She provides a copy of the communication received, the envelope containing her data, and the certificate that accompanied the communication.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 27/11/2023, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 27/11/2023 as noted in the acknowledgment of receipt in the file.

On 26/12/2023, the respondent responded to the information request stating that the personal data of the claimant's father had not been violated as they are not within the scope of application of the LOPDGDD; it also indicates that such data has been obtained from a publicly accessible source such as the Civil Registry and regarding the claimant's data, it is reported that they have also not been violated as they are registered in the Civil Registry and there is no restriction on them; however, they indicate that they have verified that consent for the processing of such data has not been obtained and after receiving the complaint, they proceed to suspend the advisory service to relatives of deceased persons until this procedure is resolved.

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THIRD: On 10/01/2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the respondent is a small company established in 2020, with a business volume of (...) in the year 2022.

FIFTH: On 22/05/2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Articles 6.1 and 14 of the GDPR, classified under Article 83.5.a) of the GDPR, with fines of €1,000 each.

SIXTH: The initiation agreement was notified on 11/06/2024 as noted in the acknowledgment of receipt, and the respondent did not submit any written allegations.

SEVENTH: On 03/07/2024, a period for the practice of evidence was initiated, agreeing to the following:

- To consider the complaint filed by the claimant and its documentation, the documents obtained and generated by the Inspection Services that are part of the file as reproduced for evidentiary purposes.

EIGHTH: On 29/08/2024, a Proposal for Resolution was issued stating that the respondent should be sanctioned for the infringement of Articles 6.1 and 14 of the GDPR, classified under Articles 83.5.a)

and 83.5.b) of the GDPR, with a fine of €1,000 (one thousand euros) for each of them.

The proposal was notified on 30/08/2024 without the respondent, after the legally established period, submitting any written allegations.

NINTH: From the actions taken in this procedure, the following has been established:

PROVEN FACTS

FIRST. On 06/11/2023, a document from the claimant was received by the AEPD in which she states that the respondent contacted her through postal communication offering her professional services for carrying out procedures following the death of her father, attaching to that communication a death certificate of the same, obtained without her prior consent; she indicates that she has filed a complaint with the Civil Registry of Bormujos, as the entity responsible for issuing the aforementioned certificate, without receiving any response.

SECOND. The death certificate of the claimant's father has been submitted.

THIRD. There is a communication sent by postal mail from the respondent to the claimant, in which they offer their professional services stating that "(...)

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In this regard, this Management/Advisory service places at your complete disposal our extensive experience and our team of expert professionals specialized in all the procedures to be carried out after a death, for which we offer you a series of services and advice without any obligation, such as those detailed below:

(...)

FOURTH. The party being claimed in the writing of 26/12/2023 has stated the following regarding the processing of the claimant's data and that of her father:

"Regarding the data of the claimant's father, we understand that it has not been violated... as it is not within the scope of application of the LOPDGDD. Regarding the data of the claimant... we could understand that it has not been violated for the same reasons put forth, as it will be governed by the provisions of its specific legislation, since it derives from the processing of data derived from the Civil Registry and is not included within the scope of the data with restricted publicity indicated in Article 85 of the Law... of the Civil Registry... However, it is in this data procedure where we have observed that the procedures have not been carried out as we have established, which is why we have adopted new corrective and preventive measures in this regard.

Specifically, the claimant's data belongs to the processing of POTENTIAL CLIENTS data, which is one of the treatments we have categorized in the RAT of the organization, Activity Register of Processing... This data is obtained from publicly accessible sources... with the purpose of publicizing those relevant data in legal traffic, with the ultimate aim of ensuring the legal and economic security of such traffic.

...The incident we have observed and modified is that prior communication to the interested party was not carried out as established in Article 14 of the Regulation, where they were also informed of the new purpose and the request for their express consent to carry out the data processing in accordance with the regulations..." (the underlined portions correspond to the AEPD).

FIFTH. The Activity Register of Processing has been submitted. Potential Clients.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

First obligation breached: infringement of Article 6.1 GDPR

The claimed facts materialize in the processing of the claimant's data without legitimization, which could imply a violation of the regulations regarding the protection of personal data.

Article 58 of the GDPR, Powers, states:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time;

(...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)"

Article 6, Lawfulness of processing, of the GDPR in its paragraph 1, establishes that:

"1. Processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

c) processing is necessary for compliance with a legal obligation to which the controller is subject;

d) processing is necessary to protect the vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject."

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fundamental rights of the data subject that require the protection of personal data, particularly when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

"2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of making available, alignment or combination, restriction, erasure, or

destruction;

“11) ‘consent of the data subject’: any freely given, specific, informed, and unambiguous indication of the data subject’s wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them.”

It should be noted that the processing of data requires the existence of a legal basis that legitimizes it. In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of the data subject, particularly when it is necessary for the performance of a contract to which the data subject is a party or for the implementation, at their request, of pre-contractual measures, or when it is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the data subject which require the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation to which the data controller is subject, to protect vital interests of the data subject or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

In this case, the respondent is accused of violating Article 6.1 of the GDPR as the illegality of the processing carried out is evident, with none of the legal bases provided for in the aforementioned article being accredited in relation to the processing of the claimant's data.

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The respondent has confirmed in their letter dated 26/12/2023 regarding the processing of the claimant's data that the data was obtained from publicly accessible sources such as the Civil Registry without having informed the claimant of its acquisition in the terms indicated in Article 14 of the GDPR. Furthermore, it has indicated that “we have observed that the established procedures regarding data protection have not been followed, so at the beginning of December 2023, we adopted new measures to prevent similar incidents from occurring...”

Therefore, the conduct of the claimant constitutes a violation of Article 6.1 of the GDPR, which is classified in Article 83.5.a) of the aforementioned Regulation.

III

Classification of the infringement of Article 6.1 of the GDPR

The infringement attributed to the respondent is classified in Article 83.5 a) of the GDPR, which considers that the infringement of “the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9” is subject to sanctions, in accordance with paragraph 5 of the aforementioned Article 83 of the said Regulation, “with administrative fines of up to €20,000,000 or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

The LOPDGDD in its Article 71, Infringements, states that: “Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

And in its Article 72, it considers for the purposes of prescription that they are: “Infringements considered very serious:

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, those infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met.

(...)

IV

Proposal for sanction for non-compliance with Article 6.1 of the GDPR

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In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” establishes that:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.”

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- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) To have, when not mandatory, a data protection officer.

h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

- According to the transcribed provisions, for the purpose of determining the amount of the sanction to be imposed in this case for the infringement classified in Article 83.5.a) and Article 6.1 of the GDPR, for which the respondent is held responsible, the following concurrent factors are considered:

The activity of the allegedly infringing entity is linked to the processing of personal data of both clients and third parties. In the activity of the responding entity, the processing of personal data is essential; therefore, given its business model, the significance of the conduct subject to this claim is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

The intentionality or negligence in the infringement, also connected with the degree of diligence that the data controller is obliged to exercise in compliance with the obligations imposed by data protection regulations, can be cited from the SAN of 17/10/2007. Although it was issued before the entry into force of the GDPR, its ruling is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, specified that “(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard” (Article 83.2.b) of the GDPR).

In accordance with the above, it is deemed appropriate to establish a sanction of 1,000 euros for the violation of Article 6.1 of the GDPR.

V

Second obligation breached: infringement of Article 14 of the GDPR

Article 14 of the GDPR, Information to be provided when personal data have not been obtained from the data subject, establishes that:

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“1. When personal data has not been obtained from the data subject, the data controller shall provide the following information:

- a) the identity and contact details of the controller and, where applicable, of their representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended, as well as the legal basis for the processing;
- d) the categories of personal data concerned;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a recipient in a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second subparagraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject with the following information necessary to ensure fair and transparent data processing regarding the data subject:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the data controller or a third party;

- c) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of their processing, and to object to the processing, as well as the right to data portability;
- d) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- e) the right to lodge a complaint with a supervisory authority;
- f) the source from which the personal data originate and, where applicable, whether they come from publicly accessible sources;
- g) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. The data controller shall provide the information referred to in paragraphs 1 and 2:

- a) within a reasonable period, once the personal data have been obtained, and at the latest within one month, taking into account the specific circumstances in which the data are processed;

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- b) if the personal data are to be used for communication with the data subject, at the latest at the time of the first communication to that data subject, or
- c) if it is intended to communicate them to another recipient, at the latest at the time when the personal data are communicated for the first time.

4. When the data controller intends to process the personal data for a purpose other than that for which they were obtained, they shall provide the data subject, prior to such further processing, information about that other purpose and any other pertinent information indicated in paragraph 2.

5. The provisions of paragraphs 1 to 4 shall not apply when and to the extent that:

- a) the data subject already has the information;
- b) the communication of such information proves impossible or involves a disproportionate effort, in particular for processing for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, subject to the conditions and safeguards referred to in Article 89, paragraph 1, or to the extent that the obligation mentioned in paragraph 1 of this article may seriously impede or obstruct the achievement of the objectives of such processing. In such cases, the controller shall take appropriate measures to protect the rights, freedoms, and legitimate interests of the data subject, including making the information public;
- c) the obtaining or communication is expressly laid down by Union or Member State law applicable to the data controller and which provides for adequate measures to protect the legitimate interests of the data subject, or
- d) when the personal data must continue to be kept confidential based on a professional secrecy obligation regulated by Union or Member State law, including a legal obligation of secrecy.

The party being claimed in its writing dated 12/26/2023 has stated regarding the processing carried out that “The incident we have observed and modified is that the communication to the data subject was not carried out beforehand as established in Article 14 of the Regulation, where they were also informed of the new purpose and the request for their explicit consent to carry out the data processing in accordance with the regulations...”

On the other hand, regarding the statement of the claimed party concerning the origin of the data of the claiming party indicating that: “Specifically, the data of the claimant belongs to the processing of data POTENTIAL CLIENTS, which is one of the processes we have categorized in the RAT of the organization, Activity Register of Processing... This data is obtained from public access sources... with the purpose of publicizing those relevant data in legal traffic, with the ultimate aim of ensuring the legal and economic security of said traffic.”

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It should be noted that the concept of “public access sources” does not appear in the current GDPR as a basis for legitimization for the processing of personal data.

In any case, and if it is considered that the personal data were obtained from a third party, not from the data subject themselves, the claimed party, in order to act in accordance with the law, should have communicated to the claiming party the obtaining of the same, either at the time they were obtained or when they were used for commercial purposes, or at the time when the personal data were communicated for the first time, and in any case within a maximum period of one month, in accordance with Article 14 GDPR.

The claimed party has also not weighed or justified that their legitimate interest prevails over the interests, rights, and freedoms of the claiming party in the data processing carried out.

This behavior of the claimed party constitutes a violation of Article 14 of the GDPR, the qualification of which is contemplated in Article 83.5.b) of the GDPR.

VI

Qualification of the infringement of Article 14 of the GDPR

The infringement attributed to the claimed party is classified in Article 83.5 b) of the GDPR, which considers that the infringement of “the rights of the data subjects pursuant to Articles 12 to 22” is punishable, in accordance with paragraph 5 of the aforementioned Article 83 of the cited Regulation, “with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

The LOPDGDD in its Article 71, Infringements, states that: “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law.”

And in its Article 74, it considers for the purposes of prescription, that they are: “Minor infringements: The remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 are considered minor and shall prescribe after one year, and in particular, the following:

a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

(...)”

VII

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Proposal for Sanction for Non-compliance with Article 14 of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation referred to in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or

purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures referred to in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct pursuant to Article 40 or to approved certification mechanisms under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and Corrective Measures," establishes that:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

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b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) To have, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

- According to the transcribed provisions, for the purpose of determining the amount of the sanction to be imposed in this case for the infringement typified in Article 83.5.a) and Article 14 of the GDPR, for which the respondent is held responsible, the following factors are considered concurrent:

The activity of the allegedly infringing entity is linked to the processing of personal data of both clients and third parties. In the activity of the respondent, the processing of personal data is essential, so given its business model, the significance of the conduct subject to this claim is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

The intentionality or negligence in the infringement, also connected with the degree of diligence that the data controller is obliged to exercise in compliance with the obligations imposed by data protection regulations, can be referenced to the SAN of 17/10/2007. Although it was issued before the entry into force of the GDPR, its pronouncement is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded,

that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted on the rigor and exquisite care to comply with the legal provisions in this regard” (Article 83.2.b) of the GDPR).

In accordance with the above, it is deemed appropriate to establish a sanction of 1,000 euros for the violation of Article 14 of the GDPR.

VIII

Adoption of measures

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The corrective powers that the GDPR attributes to the AEPD as the supervisory authority are outlined in Article 58.2, paragraphs a) to j).

Having confirmed the violations, it is appropriate to agree to impose on the responsible party the adoption of adequate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions established in the aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may “order the controller or processor to ensure that the processing operations are performed in compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

Therefore, it would be considered appropriate to order the respondent, within a period of six months from the finality of the resolution that is issued in any case, to adjust the processing activities subject to this procedure to the applicable regulations. The text of this agreement establishes the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as they are the ones who fully understand their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD. However, in the present case, the following measure is indicated to be adopted: the implementation of technical and organizational measures that ensure compliance with the principle of lawfulness as well as the information that must be provided to the data subject in accordance with the provisions established in Articles 6.1 and 14 of the GDPR.

It is warned that failure to comply with the order imposed by this body may be considered an administrative violation in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on MUÑOZ Y CORRALES ASESORES, S.L., with NIF B41507195,

- For a violation of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR, a fine of €1,000 (one thousand euros).

- For a violation of Article 14 of the GDPR, classified under Article 83.5.b) of the GDPR, a fine of €1,000 (one thousand euros).

SECOND: TO ORDER S.L., with NIF B41507195, that pursuant to Article 58.2.d) of the GDPR, within six months from the date this resolution becomes final and enforceable, to demonstrate compliance with measures that ensure adherence to the provisions established in Articles 6.1 and 14 of the GDPR.

C/ Jorge Juan, 6

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THIRD: NOTIFY this resolution to MUÑOZ Y CORRALES ASESORES, S.L.

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with the documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

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